

To: The Arlington Redevelopment Board
Re: 259 Broadway
Date: January 12, 2026

We are a group of neighbors on Palmer St. and Broadway in Arlington, abutters and neighbors of 259 Broadway. We write to the Board as supporters of housing growth who nevertheless think that the 259 Broadway proposal needs significant revision to bring it within the letter and spirit of the Arlington Zoning Bylaw and the MBTA Communities Act.

We note first that notice of the character of this proposal was not available until about a week before the ARB hearing date. For those of us with no experience in the local development process, the proposal came as a surprise, which has meant a real scramble to understand it and respond adequately. We are still scrambling and look forward to more opportunities for input to help improve the proposal after we have learned more.

We have a number of questions and areas of concern, but most of them center on the fit of the building for this neighborhood in terms of size (and aesthetic fit), including importantly the near-certainty that the building would add a large number of cars to the neighborhood. According to the state's Executive Office of Housing (EOHLC), a core principle of development under the MBTA Communities Act is that "The Multi-family zoning districts required by M.G.L. c. 40A, § 3A should encourage the development of Multi-family housing projects of a scale, density and aesthetic that are compatible with existing surrounding uses . . ." And, according to Arlington's own Environmental Review standard, "Proposed development shall be related harmoniously to the terrain and to the use, scale, and architecture of existing buildings in the vicinity that have functional or visual relationship to the proposed buildings." We take these to be familiar and uncontroversial principles, even when pursuing the worthwhile goal of increasing the number of housing units in the neighborhood.

Here, the proposal asks for a "bonus" fifth story and the elimination of the normal setback requirement. The fifth floor would raise the height of the building to 61 feet, approaching twice the height of any other building in the immediate vicinity, and without any setback to moderate the effect of the height. Within this somewhat daunting building (for its surroundings), there would be 14 apartments, 12 of them one-bedroom apartments. We would welcome more neighbors, and this building would not at all be the first apartment building in the area. But it would stand out for its height, its jarring aesthetics, and the number of cars it would put on our small, local streets.

A somewhat smaller building can be built that will better meet the foundational principles and written rules of zoning and development in Arlington, as well as those of the MBTA Communities Act. We ask the Board to consider seriously the following specific ways in which we believe the current proposal not only violates general principles of fit with existing uses but also, in at least one respect, violates specific zoning rules.

1. The proposal seeks a bonus floor and elimination of setback requirements on the basis of its inclusion of **commercial space on the ground floor**. But we believe that the commercial space does not reach the required threshold of 60% of the area of the ground floor. The proposal excludes from the ground-floor denominator that part of the building's footprint that the developer allocates to non-enclosed, accessory parking. But the point of the bonus is to incentivize provision of useful commercial space, space that evidently developers prefer not to provide in a

residential development. Necessarily, the rules use a somewhat arbitrary calculation to determine how much space is enough in exchange for getting a fifth floor. We should not allow developers to game that calculation by excluding any open-air facilities that they include in the ground floor. That would incentivize more parking, for example, rather than the commercial space that the bonus rules seek to encourage.

Not only that, but if developers can easily game the commercial space rule, they will have no incentive to seek a bonus floor through the alternative of increasing the proportion of affordable units in the building. For example, this developer proposes only two affordable units, the minimum, while seeking the commercial space bonus with two very small storefronts that will greatly limit the types of businesses that might move in. If they are rightly prevented from satisfying the commercial space requirement in this compromised way, then they would have to meaningfully increase the proportion of affordable units if they wanted to qualify for the bonus fifth story.

(Note that there is a wholly separate section of the Zoning Bylaw that excludes open-air space when calculating the Gross Floor Area of an entire project. But that rule serves an entirely different policy in an entirely different context. It has nothing to do with effectively incentivizing provision of commercial space in residential buildings. Nor does the bonus floor rule in the MBMH district borrow the term of art “gross floor area” but only uses its own language of “ground floor at street level.”)

2. The building presumptively requires 14 off-street parking spaces, but it only provides five, and plans to charge at least \$175 per month for those spaces. This prohibitive cost may inadvertently result in more daytime and overnight on-street parking. Despite the efforts to incentivize the use of bikes and public transportation, which we enthusiastically support, the reality is that most residents will need (or at least insist on) at least one car, adding a substantial number of cars to an already barely tenable situation.

A request for fewer spaces goes to the discretion of the ARB, which can and should assess the particular parking situation of the project’s locale. On the Broadway side of 259 Broadway, the building pushes up hard against the zone where parking meters begin, as a response to the growing parking congestion as you approach the center of town. Around the corner, Palmer St. is a narrow street of houses on very tight lots, many of them two-family houses, generally with single-width driveways. The stretch of curb between 259 Broadway’s driveway on Palmer and the stop sign at the corner is already a no-parking zone. Several Palmer St. residents have purchased annual overnight parking permits because their buildings lack off-street parking, so the few available on-street parking spots at the Broadway end of Palmer St. are already allocated.

During the day, it is often impossible to have two-way traffic for the length of the street, forcing passing cars to pull over and squeeze past each other. Although residents try to make space for Tuesday garbage trucks, for example, the street remains a tight-fit obstacle course for garbage trucks, delivery vehicles, and especially firetrucks. In fact, we just recently had an experience with firetrucks struggling to respond to a serious fire in the middle of the block. All of this has been exacerbated by construction vehicles’ almost constant presence on the street for years, associated with a slow-moving mid-block construction project, the two years (or so) of work on the water main that travels under Palmer St, the usual round of renovations and servicing, and now the year of construction that was started-then-stopped, and must be completed, at 259 Broadway.

Also on the subject of cars, **the Broadway at Palmer St. intersection sees several accidents per year** due to poor sight lines from Palmer onto Broadway, and if 259 Broadway is

constructed with zero setback, visibility west on Broadway will further decrease, potentially leading to a further increase in accidents.

3. The sheer height of the proposed building will deprive some neighbors of substantial sunlight. Certainly, the most immediate abutters and neighbors will see gardens and yards thrown into the shade for most of the day, potentially requiring substantial reconfiguration and substantial lessening of enjoyment of their properties. Moreover, at least one abutter on Broadway had already been researching and shopping for solar panels but would suddenly lack the necessary sun exposure to make that work. The same is likely true for a number of houses on Palmer St. and on Broadway, though the precise extent of the effect is unclear to us at this point. A four-story or three-story building would seem to be vastly better on these counts.

4. Finally, we note that the proposal is wholly inconsistent with **the explicit, statutory principle of the MBTA Communities Act that the multi-family housing it promotes be suitable for families with children.** We recognize that, under an interpretation by the EOHLC, that language serves as a restriction only on municipalities' zoning rules, not on developers' plans. But the spirit of the law would caution municipal authorities like the ARB to exercise their limited power to discourage projects, like this one, that are dominated by one-bedroom apartments, which are manifestly unsuitable for families with children (notwithstanding that there are many families in this world that are compelled to make the best of such housing). Were Arlington to find itself approving one project after another that was not reasonably suitable for families with children, we would be violating the spirit of the law.

For all these reasons, we hope that the proposal for 259 Broadway will not be approved as is or at its current size. We hope to be helpful collaborators in moving towards a proposal that increases the number of units that have existed on that lot for many years but creatively calibrates that increase and shapes the new building in a way that honors the legitimate needs of the neighborhood, the important policies of the Zoning Bylaw, and the legitimate desire of the developer to earn a profit that will make the project attractive to them.

Sincerely,

Gerry Leonard 44 Palmer St.
Keziah Dutchak-Leonard 44 Palmer St
Jeffrey Yee 261 Broadway
Amanda Mei of 261 Broadway
Elizabeth Billings 59 Palmer Street
Jonathan Davey 59 Palmer Street
William Davey 59 Palmer St
Catherine Davey 59 Palmer St
Scott McKenzie 41 Palmer Street
Laura Quinn 41 Palmer Street
Evan Bulman 47 Palmer Street
Amina Bulman 47 Palmer Street

Inserted by Larry Slotnick, precinct 7

From: Susan Pace

Sent: Monday, March 30, 2026 3:06 PM

To: Rachel Zsebery; Stephen Revilak; Kin Lau; Shaina Korman-Houston; Vincent Baudoin

Cc: Claire Ricker; Jennifer Joslyn-Siemiatkoski

Subject: Support for Article 53

I am writing to express my support for Article 53, as presented by Larry Slotnick and Joanne Cullinane.

Commercial space is essential to a healthy tax base in Arlington and should not be an afterthought when new developments are built in the MBTA corridors of Arlington.

Furthermore, our bylaws should not be open to interpretation and distortion. Bonuses should be difficult to obtain and only issued to developers who significantly benefit our community by the building of their project. New housing alone should not be sufficient to reduce setbacks and raise building heights. The current bylaws already give developers the ability to build larger structures than were previously allowed in these zones.

Sincerely,

Susan Pace
91 Marathon Street

(Cover letter for Christian Webb letter, from Article 53 proponents)

The July 19, 2025 letter (below) from Dr Christian Webb raises concerns about the scale of buildings that can rise to 65 feet tall (5 story) in a predominantly 2.5-story residential neighborhood. The size of the proposed 126 Broadway building has impacts on traffic sight lines (affecting automobile, cyclist and pedestrian safety) and overall congestion. A four-story building creates shadow and restricts access to sunlight for abutters and pedestrians to begin with, and the impacts are greater when a building receives a fifth floor bonus. Further, these impacts are particularly acute when the project receives permission to build with a zero sidewalk setback only available to those projects that meet the commercial bonus requirements.

The letter (below) speaks to the tradeoff between burden and benefit and why the bonus rule was intended as a strict threshold. This is why the commercial use bonus was not intended to enable any lesser amount of commercial space to be used to satisfy the 60% ground floor threshold. Instead, developer bonuses were meant to bring the maximum intended BENEFIT of the bonus to those affected. To realize this intended benefit, the rules should be strictly enforced, and a full 60% of the ground floor 'footprint' allotted so that the neighbors - and the town - receive maximally viable commercial spaces, rather than token ones that do not honor the spirit of the rule's intention.

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From: Webb, Christian A.,PHD Sent: Saturday, July 19, 2025 7:17:12 PM
To: Claire Ricker Cc: Renata Cardoso Subject:
RE: Docket #3862 - 126 Broadway Site Plan Review

Dear Chair Zsembery and Members of the Arlington Redevelopment Board,
I am writing to express my concerns regarding the proposed mixed-use development at 126 Broadway (Docket #3862). As a longtime Arlington resident who values our community's character and livability, I respectfully request that the Board carefully consider the following issues.

The proposed 5-story, 50-foot building represents a dramatic departure from the established residential character of this neighborhood. The current two-family home fits harmoniously within the existing streetscape of primarily 1-3 story residential buildings. This massive structure would tower over neighboring homes, fundamentally altering the intimate, family-friendly atmosphere that defines this area.

The building's bulk and massing, despite architectural attempts at modulation, remains incompatible with the human scale that makes our neighborhood walkable and welcoming to families with children.

Broadway already experiences significant traffic congestion, particularly during peak commuting hours. Adding 14 residential units plus a commercial space will substantially increase vehicle trips, pedestrian activity, and delivery traffic at this corner location. This is compounded by the

fact that a multi-story building was recently constructed directly across the street at the same Broadway/Everett intersection, already increasing traffic in this area.

Of particular concern:

- **Child Safety:** This intersection is heavily used by children walking to and from Thompson School on Everett St. Our neighborhood has many families with young children who walk, bike, and play in the area. The Broadway/Everett corner is a key crossing point for school children, and increased traffic density from this large development poses significant safety risks that have not been adequately addressed in the application materials.
- **Parking Pressure:** While 18 garage spaces are proposed, realistic parking demand will likely exceed this supply, pushing additional vehicles onto already crowded neighborhood streets.
- **Corner Location:** The Broadway/Everett Street intersection will see increased turning movements and potential sight line issues with a building of this scale, particularly dangerous given the school foot traffic.
- **The commercial space at the bottom** could exacerbate the above issues regarding traffic and parking spots.
- **Shadow and Light:** The shadow studies show significant impacts on neighboring properties (including our house at 100 Everett st, which is immediately next door).

I want to bring to the Board's attention that many residents in this immediate area have only recently become aware of this significant proposal. Since learning of the project, several neighbors

have spontaneously approached me expressing serious concerns about this large construction that would dramatically change our neighborhood character.

There also appears to be confusion among residents about the hearing schedule - whether the primary hearing is July 21st or the continued hearing on August 11th. As more neighbors become

aware of this proposal, I expect you will receive additional correspondence expressing similar concerns. The scale of this project and its potential impacts warrant ensuring that the affected community has adequate opportunity to provide input.

Given the significant scale of this proposal and its potential impacts, I respectfully request:

1. Extended community input sessions to ensure all affected residents have opportunity to comment
2. Stronger conditions addressing parking, delivery schedules, and construction impacts
3. Consideration of reduced scale alternatives that better respect neighborhood character
4. Clear communication about hearing dates and continuation procedures to ensure proper community notification

While I support thoughtful development that meets housing needs, this proposal goes too far in prioritizing density over community character and quality of life. Arlington's strength lies in its diverse, livable neighborhoods, and we must be careful not to sacrifice what makes our community

special in the pursuit of maximum development.

I trust the Board will carefully weigh these concerns and work with the applicant to develop a more

appropriate proposal that respects both housing goals and neighborhood livability.

Thank you for your consideration and service to our community.

Could you kindly confirm receipt?

Respectfully submitted,

Christian

100 Everett St. Unit 1

Christian A. Webb, PhD

Associate Professor, Harvard Medical School

Director, Treatment & Etiology of Depression in Youth Laboratory

Co-Director, Center for Depression, Anxiety & Stress Research

McLean Hospital

115 Mill St, Belmont, MA 02478

T: 617-855-4429, F: 617-855-4231

e-mail: cwebb@mclean.harvard.edu

March 23, 2023

Dear ARP members, Planning Director, Select Board members and Town Manager,

My name is Annem Chan Waiy, I am an Arlington resident and architectural designer. I have some experience with developer's projects and Zoning Bylaw in Cambridge and Somerville and I have seen how there are always gaps on the Bylaws and developers tend to interpret rules differently than the City or Town officials. Then projects become precedents to others, pushing the rules on their own interpretation, in favor of them and not our community. We trust in you to enforce those rules.

I am in favor of the proposed Article 53 that seeks to preserve the intent of the MBTA Act Overlay "Bonus Rule for the Commercial Use" and the definition of "60 percent of the ground floor". Our current Zoning Bylaw Section 5.8.4. E Bonuses (1) it is clear: "the ground floor at street level will be at least 60% occupied by eating and drinking establishments, businesses services, childcare, or retail uses." Article 53 proposes even more clarity to the rule so there will be no room for misinterpretation.

We trust in you to enforce those rules and to represent us as a community.

Thank you,

Annem Chan Waiy

Submitted by Larry Slotnick, precinct 7

From: Douglas Funkhouser

Sent: Sunday, January 11, 2026 9:42 AM

To: Rachel Zsembery; Kin Lau; Shaina Korman-Houston; Eugene Benson; Claire Ricker; Stephen Revilak; Jennifer Joslyn-Siemiatkoski

Subject: Comments on the Broadway Project and Possible AHO

I will miss your meeting on the 12th. I wanted to register my concern about the proposed projects at 126 and 259 Broadway. The projects lack adequate parking, setbacks, and open space; make a perfunctory nod toward providing commercial space; are too tall and too dense; and don't provide the correct number of affordable units. Bonus rules are being proposed for approval when they should not be allowed. Neither project represents an improvement for the Town, and they don't respect the interests nor the needs of the abutters and other neighbors.

The draft "affordable housing overlap" plan proposes residential development at a large number of Town sites. Many of these sites are now occupied by businesses, Town parking, and other viable, worthwhile, and diverse existing uses. We need to support current and potential new businesses in order to keep the Town vital and interesting. I grant that some of the proposed sites are developable, but they should be proposed and reviewed on a case-by-case basis, with careful attention to building heights, site density and unit maximums, commercial space potential, parking (especially), setbacks and open space. An overlay may simplify approvals, but in fact each individual project needs thoughtful review. And, perhaps most importantly, the proposal has come to you without adequate input from various Town constituents.

I don't believe it is the role of the ARB or any other Town group to make projects "economically feasible" by waiving important project requirements and planning principles. Developer interests and Town interests are very different, and developers naturally test resolve. We should not privilege developers at the expense of the long-term interests of the Town.

Thanks for listening.

Doug Funkhouser

Submitted by Larry Slotnick, precinct 7

Cover letter for context provided by Larry Slotnick

Regarding Alexandra Lee's letter with the names of 17 neighbors at the bottom, I agree that her argument didn't explicitly call out the ground floor commercial space calculation. But the letter quite clearly alludes to the two developer benefits that are relevant to that particular bonus. One element is the extra story (or floor) and the second is the zero setback from the Broadway sidewalk lot line. So, I feel it can be directly implied that since the bulk of the letter discusses the impacts of both the building's mass and the absence of a Broadway setback, the implied message is that the Applicant has not earned a right to those deleterious ground floor commercial space bonus elements.

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To: Arlington Redevelopment Board
CC: Claire Ricker, DPCD Director
From: Alexandra Lee, Harlow Street resident and 32-year Arlington taxpayer
Date: October 14, 2025
RE: Proposal for Building at 126 Broadway

Dear Members of the Arlington Redevelopment Board,

This letter will convey my perspectives on the building currently being proposed at 126 Broadway and the larger context of development in East Arlington.

In the overall world of development, the best projects and outcomes seem to be derived from thoughtful visions for a community with robust community input and willing developers to leave something better than they found it. This premise may not be at work with the development being proposed for 126 Broadway.

The Broadway Corridor Redesign Project is underway I believe, although I have received no information about community input to date. Does it not make sense to complete this vision before undertaking proposals that will satisfy the MBTA overlay zoning district? The overlay calls for significant development along Broadway possibly on almost every lot.

Is there a master plan for development of the entire length of Broadway impacted by the MBTA zoning so that residents and taxpayers can see the overall vision? How can you proceed without a vision to share?

The proposal for 126 Broadway will set the tone and precedent for the entire corridor. If the town allows overbuilding with this massive five-story, out of context building designed with little thought to fitting in, the neighborhood character will certainly suffer. You have heard this input from many of the nearby residents.

Reviewing the correspondence from the proponents, most of them live further than half a mile away from 126 Broadway and it calls the question, would they support this project if this development were proposed next to their homes?

Please consider the overreaching mass of this new building as it relates to the adjacent two-family homes. The design could be significantly improved and the questions that you posed to the developer at the September hearing were excellent in this regard. The windows on different floors not being aligned, the lack of trim on some windows, the heavy horizontal lines, the need for windows to the adjacent property on the first floor commercial and so on were a great start to the discussion.

I don't believe the color scheme was addressed (mustard yellow/olive green or grey) but I would strongly hope that the grey could be selected to help make the building fade away rather than stick out as a sore thumb any more than it already will. It is also curious as to why the designer felt the need to use vertical clapboards on the top two floors, making it stick out even more. The building as designed feels like two shipping containers dropped out of the sky onto the lot with little thought for context.

The step back from the sidewalk, if increased, would go a long way toward reducing the overall massing. If all new proposals built on Broadway were to go right to the lot line, a canyon effect will follow, not really the nature of East Arlington! In addition, the step back on the top floor could extend to all residential floors, not overwhelming the corner completely. This tactic was used successfully at 80 Broadway last year.

The step back at the corner also impacts maintaining the existing trees as the corner tree extends 12' over the line from the sidewalk. Will this tree be maintained or cut down, that would surely be a loss. We value mature trees in this neighborhood.

All the earlier comments still apply regarding increased traffic, on-site parking options, the safety of children crossing to Thompson, the shade this will throw on the neighboring houses and gardens, the lack of drainage and so on.

This building is almost the same as the height of the Capital Theatre on Mass Ave and that is too large for this lot size. Setting this kind of precedent for the entire corridor would be damaging to the character of the neighborhood and the town.

In closing, the critical need for more housing is a reality but it can be added incrementally without taking such a big bite from the apple. There is plenty of space on the one-mile Broadway corridor to add housing at more modest levels and maintain the neighborhood values and aesthetics.

Thank you for your consideration and I and our neighbors look forward to your response.
Alexandra

Cc: Clarissa Rowe
Betty Stone
Lauren and Sarah Scott
Dexter and Yael Beals
Angela and Sean Alton
Anna Precht
Adam Fischer
Tom Robertson
Sheelah Ward
Abigail and Scott Rice
Andi Doane
Susan Dorson
Natasha Strom

Submitted by Larry Slotnick, Pct 7

To: Greg Christiana, Town Meeting Moderator

From: Hardeep Singh

Date: 5/12/2029

Subject: Article 53 Letter of Support

Dear Mr. Moderator: I have concerns that the ground floor commercial space bonus rules for MBTA projects are not being followed by the redevelopment board, and that developers are being encouraged to take advantage of this to get the extra height and bypass sidewalk setbacks. Such projects are unlikely to result in healthy businesses or much of an increase in business-related tax income for the town.

The women's fitness studio at 80 Broadway is a perfect example of low effort commercial space usage for the sake of maximizing building size. Plans should be properly scrutinized to determine if developers are making good faith efforts to bring healthy and profitable businesses to the MBTA-C overlay district.

The zoning bylaw is as follows:

“In the MBMF Overlay District, for properties abutting Broadway, where the ground floor at street level will be at least 60% occupied by eating and drinking establishments, businesses services, childcare, or retail uses, there are no residential units on the ground floor at street level, and the frontage is at least 80% occupied by said non-residential uses, the maximum height is 5 stories and 65 feet, and the front yard setback requirement is reduced to 0 feet.”

There are critical flaws which inhibit the development of 3 types of commercial businesses listed.

Eating and Drinking Establishment: On-site food preparation will require a kitchen and a kitchen will require a proper ventilation system. Based on current zoning bylaws, side ventilation is not allowed. The only option is for the venting system to extend upward to the top of the building from the ground floor, which seems unfeasible.

Business Services: Business services will likely have visitors or clients on site for long durations, driving a need for on-site parking to accommodate clientele. The projects proposed so far have very limited number of resident parking spots and no commercial parking spots proposed.

Childcare: Any childcare facility will require some amount of outdoor play space as well as dedicated off street drop-off and pick-up areas.

Retail Use: This application is the most feasible, but likelihood of long-term stability is unlikely due to high lease costs and lack of clientele/foot traffic. Lack of dedicated parking is problematic as with all the other potential commercial uses.

If the town is serious about diversifying the tax base by adding dedicated commercial use real estate, a dedicated effort is necessary to properly evaluate where and how commercial buildings can be established in the town instead of haphazardly allowing non-serious efforts shoehorned into residential developments. All bonus conditions related to MBTA community bylaws should be put to a vote for the general public to decide if such zoning allowances should be permitted in our communities. The negative impact of these bonus conditions has not been properly assessed, and my concern is that in the long term the developments approved as a function of these bonus conditions will lead to more strain on public resources and make the town less equitable overall.

My family immigrated to the US in 1993 and have lived in Arlington from the first day we set foot in America. My parents were able to purchase property in the town when I was young; my brother and I also own property due to the fact that we were privileged to have parents who had experience in the matter as well as being lucky enough to buy-in at the right time. My sister and her husband own property in Arlington as well. This is generally described as

“The American Dream”, the ability to start from low means and put in the work to acquire property. In my opinion that dream no longer exists in Arlington to the detriment of the community as a whole. These large developments are another nail in the coffin of that dream.

This is why I strongly support Article 53. It clarifies the language that town meeting voted for in Fall 2023.

Hardeep Singh

89 Everett St.

Arlington, MA 02474

Submitted by Larry Slotnick, Pct 7

May 14, 2026

Fr: Brendan Gibson <brendanpaulgibson@gmail.com>

To; Precinct 7 Town Meeting members

As a resident of Precinct 7, I support the Cullinane-Slotnick substitute motion on Article 53, unamended, because it clarifies the intent of the “commercial bonus” rule under the MBTA Communities zoning changes. The current ARB interpretation allows developers to reduce meaningful ground-floor commercial space by substituting parking or other non-enclosed areas, while still receiving permission for taller buildings.

Article 53 restores the original balance intended by Town Meeting: allowing additional height only when developers provide substantial, usable commercial space that supports vibrant business districts alongside new housing.

I believe this clarification protects both Arlington’s housing goals and the integrity of the zoning rules adopted by Town Meeting.

For these reasons, I strongly support Article 53 and appreciate your consideration.

Thanks,

Brendan Gibson

63 Palmer Street